

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #06	CCRB Case #: 201411235	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 11/02/2014 6:18 PM	Location of Incident: 259-09 Hillside Avenue	18 Mo. SOL 5/2/2016	Precinct: 105		
Date/Time CV Reported Mon, 11/03/2014 8:50 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 11/03/2014 8:50 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Wendy Scarborough	26317	937432	105 PCT
2. POF Stephanie Vacchio	31707	953511	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Wendy Scarborough	Discourtesy: PO Wendy Scarborough acted rudely toward § 87(2)(b)	A . Unsubstantiated
B . POF Wendy Scarborough	Off. Language: PO Wendy Scarborough made remarks to § 87(2)(b) based upon religion.	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 2, 2014, at approximately 6:18 p.m., § 87(2)(b) was sitting in the driver's seat when his vehicle was stopped in the parking area of 259-09 Hillside Avenue, in Queens. PO Wendy Scarborough wrote § 87(2)(b) a summons for double parking then tossed the summons at his face (**Allegation A**). As PO Scarborough walked away, § 87(2)(b) heard her say, "You terrorist guys always do that" (**Allegation B**). § 87(2)(g), § 87(4-b)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation (encl. 7E).
- A check of any Notice of Claims filed by § 87(2)(b) for the incident was requested on January 28, 2015 (encl. 7J). As of date, the status is pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2B).
- § 87(2)(b) has no previous CCRB complaints (encl. 2C).
- PO Scarborough has one prior CCRB complaint where an allegation had been unsubstantiated § 87(2)(g)

Complainant/Witness: § 87(2)(b)

On November 3, 2014, § 87(2)(b) filed this complaint on behalf of § 87(2)(b). He provided a brief statement online, via the CCRB website, in which he alleged that PO Scarborough tossed the summons in § 87(2)(b)'s face, then said, "Fuck off terrorist." However, § 87(2)(b) did not provide a sworn statement. On November 7, 2014, § 87(2)(b) was contacted and he stated that he did not want to pursue with the complaint because he is an officer in the NYPD (encl. 7A).

Findings and Recommendations

Allegation A- Discourtesy: PO Wendy Scarborough acted rudely towards § 87(2)(b)

It is undisputed that PO Scarborough issued § 87(2)(b) a summons for double parking (encl. 4L and 5H). However, § 87(2)(b) and § 87(2)(b) alleged that PO Scarborough tossed the summons at § 87(2)(b).

Based on § 87(2)(b)'s, and the two occupants' statements, § 87(2)(b) and § 87(2)(b) (both of whom are friends of § 87(2)(b)) PO Scarborough immediately tossed the summons into § 87(2)(b)'s vehicle, hitting § 87(2)(b). § 87(2)(b) was sitting in the rear passenger seat while § 87(2)(b) sat in the front passenger seat in the vehicle. Both § 87(2)(b) and § 87(2)(b) stated that PO Scarborough never instructed or gestured § 87(2)(b) to take the summons (encl. 4E, 4K, and 4R).

Based on PO Scarborough's and PO Vacchio's testimony, § 87(2)(b) was rude and disrespectful during the incident. PO Scarborough recorded the aforementioned demeanor, "Rude, disrespectful to officer, and obnoxious," on the back of the summons, which she provided during the interview (encl. 5H). After PO Scarborough completed the summons, PO Vacchio and PO Scarborough both stated that PO Scarborough handed the summons to § 87(2)(b) and he received the summons with his hands. PO Scarborough denied that she threw the summons or placed the summons on any other part of his body (encl. 5G).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as *unsubstantiated*.

Allegation B- Offensive Language: PO Wendy Scarborough made offensive remarks to § 87(2)(b) based upon religion.

§ 87(2)(g)

§ 87(2)(b) stated that as PO Scarborough began walking away from his vehicle, she stated, “You terrorist guys always do this” (encl. 4K). § 87(2)(b) partially corroborated the statement in his initial statement as PO Scarborough stating, “Fuck off terrorist” (encl. 4E). However, § 87(2)(b) who was in the rear passenger seat of the vehicle only heard PO Scarborough say, “You guys always do that” (encl. 4R). Even though § 87(2)(b) was seated in the back seat and only the driver’s window was opened, he stated that he was able to hear the conversation between § 87(2)(b) and PO Scarborough.

PO Scarborough denied making any offensive remarks towards § 87(2)(b) (encl. 5G). PO Vacchio stated that she was walking alongside PO Scarborough and she did not hear PO Scarborough say anything towards § 87(2)(b) as they returned to the patrol car (encl. 5P).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as *unsubstantiated*.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date